



File No.: EXP202308822

RESOLUTION OF

PROCEEDING OF WARNING

Of the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on May 16, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The grounds for the complaint are as follows:

The claimant asserts that the respondent is responsible for a surveillance camera installed at their residence which, due to its location and orientation, is capable of capturing images of the claimant's home, which borders that of the respondent. The claimant also indicates that they have a camera at the entrance of their home that captures the public road.

The claimant provides images of the camera locations and a Police Report dated April 29, 2023 (Documentary Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On June 29, 2023, the complaint was forwarded to the respondent to prove the legality of the system.

The respondent initially cooperated with this agency, responding to the transfer made, clarifying various aspects of the installed system, but not regarding the device (video intercom) in a letter dated July 28, 2023.

FOURTH: On August 16, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FIFTH: The Initiation Agreement was forwarded to the respondent in accordance with the current Law 39/2015 (October 1), being received by the respondent as evidenced in the File.

SIXTH: On February 2, 2024, the respondent requested a copy of the Complaint and attached documentation for the exercise of the right to defense, being forwarded on February 9, 2024, and noted as at the address indicated by the respondent.

SEVENTH: On February 9, 2024, a written statement of allegations was received from the respondent in which they state the following:

"The video intercom is installed in my family home. This residence is inhabited by me, my wife, and my two minor daughters. It is a single-family home (chalet). There is direct access from the house to the public road through a door where the video intercom is installed.

There is no lobby or similar. The use of the video intercom is to perform the functions of a domestic video intercom with the sole purpose of notifying when someone rings the doorbell and allowing me to open the door.

(...). (ANNEX 3)

The device allows configuring a privacy mask so that with its correct configuration, only the section of the street that leads to the door of the house is shown. Thus, when activated, it only captures the person ringing the doorbell.

Currently, the video intercom is no longer installed. It is not operational as it has been stolen on two occasions. (Annex 4).

Regarding an identical device, the AEPD has already ruled, accepting its validity as a video intercom. This is evidenced in File No. (...). (Annex 5) I express my full willingness for the Agency, if deemed necessary, to examine the surveillance cameras and the video intercom on-site, just as the Local

Police of Rivas was allowed to inspect them in the past.”

In view of all the actions taken, the Spanish Agency for Data Protection considers the following proven facts in the present proceeding,

PROVEN FACTS

First. The facts arise from the complaint dated May 16, 2023, through which the following is conveyed: “the respondent is responsible for a surveillance camera installed at their residence which, due to its location and orientation, is capable of capturing images of the claimant's home, which borders that of the respondent.

The claimant also indicates that they have a camera at the entrance of their home that captures the public road” (folio No. 1).

Second. It is evidenced that B.B.B. is the main responsible party, who does not deny being responsible for the installation of a video intercom at the access door to their home, as well as having cameras for the purpose of securing their property.

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Third. There is no evidence that images (data) of the claimant and/or their family unit have been recorded, nor that the device in question captures images from public space.

Fourth. Currently, the device (video intercom) has been removed from its current location, with a copy of the report submitted to the National Police (Rivas-Vacía Madrid) where it is communicated to the competent authority.

Fifth. The remaining camera(s) installed are limited to the private area of the respondent's plot, and in any case, their presence is duly informed through an informational notice.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

In the present case, the complaint dated 16/05/23 is examined, through which the following is conveyed:

“presence of a camera that could affect their private area without justified cause”

The respondent has a video intercom whose characteristics have not been clarified to this agency, reminding that it can only be activated when the main doorbell is rung, and cannot serve as a video surveillance camera.

Consequently, when a camera allows real-time reproduction of images occurring at the entrance of a building or house in its public area, its operation far exceeds the personal and domestic scope, thus implying the processing of personal data, subject to data protection regulations.

Article 5.1 c) GDPR states the following: Personal data shall be:

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“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

It should be noted that individuals and/or companies are responsible for ensuring that the installed systems comply with current legislation, proving that they meet all the requirements established by the applicable regulations.

The sounds and images that may be obtained are protected by the Organic Law on Data Protection (hereinafter LOPDGDD-LO 3/2018, December 5).

The aforementioned facts may imply a violation of the content of Article 5.1 c) GDPR, considering that the video intercom could obtain excessive control over a public area, a matter that has not been clarified by the respondent.

Article 72, section 1, letter a) establishes a statute of limitations of three years for “infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

III

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in section 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)”

For its part, Recital 148 of the GDPR indicates:

“In order to reinforce the application of the rules of this Regulation, any infringement of it must be punished with sanctions, including administrative fines, in addition to appropriate measures imposed by the supervisory authority under this Regulation, or in substitution of these. In the case of a minor infringement, or if the fine that would likely be imposed would constitute a disproportionate burden for an individual, instead of a fine, a warning may be imposed. However, special attention must be paid to the nature, gravity, and duration of the infringement, its intentional character, the measures taken to mitigate the damage suffered, the degree of responsibility or any relevant prior infringements, the manner in which the supervisory authority became aware of the infringement, compliance with measures ordered against the controller or processor, adherence to codes of conduct, and any other circumstances.

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aggravating or mitigating. The imposition of sanctions, including administrative fines, must be subject to sufficient procedural guarantees in accordance with the general principles of Union Law and the Charter, including the right to effective judicial protection and to a process with all guarantees.”

Furthermore, Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” states in its third paragraph:

“3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the data controller or processor, may issue a warning, as well as order the data controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.”

IV

On 09/02/24, a clarification document regarding the “facts” subject to transfer to the respondent was received, stating that a video intercom was installed, the scope of which is the access door of his residence, “activating only in case of a call to the doorbell,” which has been stolen from its current location.

“The use of the video intercom is to perform the functions of a domestic video intercom with the sole purpose of notifying when someone rings the doorbell and being able to open the door for them.”

A copy of the technical characteristics of the installed model is attached, which does not have the capability of “image recording.”

Additionally, a copy of the complaint filed with the State Security Forces on 04/09/23 is provided, where the “theft of the video intercom from the façade of his residence” is reported.

It should be noted that the installation of video intercoms is not prohibited by this Spanish Agency for Data Protection, although a distinction must be made between video intercoms and the current .

Regarding video intercoms, when a visitor presses one of the buttons on the street panel, the camera connects, and the image captured outside appears on the monitor, limiting the image (data) to the person ringing the doorbell, facilitating their identification and interaction with them.

The reported system only allows verifying the identity of the person calling at the respondent's residence, enabling the identification of the person calling or attempting to enter the residence in question, with the image capture being of a temporary nature.

In Report 0335/2009 of this AEPD, the following is stated: “Therefore, in those cases where the use of video intercoms is limited to their function of verifying the identity of the person who rang the doorbell and facilitating access to the residence, data protection regulations will not apply” (page 1).

According to what is stated in the Complaint, it has not been proven that the respondent has a camera that captures images of the claimant's garden area or property, beyond the mere visualization of a device installed at the door of their private residence as a video intercom.

It has also not been proven that the claimant's data and/or those of their family members have been processed outside the legally permitted channels.

It is worth noting that in certain “situations” that may be categorized as vandalism or criminal acts (e.g., graffiti on façades, property damage, throwing liquids, etc.), there is some flexibility in obtaining images of the alleged perpetrator acting furtively, and the images must be made available to the competent Authorities (e.g., Local Police or the nearest Investigating Judge to the location of the events).

V

The principle of the presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle “in dubio pro reo” in case of doubt regarding a specific and determined fact, which obliges in all cases to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the play of evidence and on an adversarial procedure in which the parties can defend their positions.

In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: “that the sanction is based on acts or evidentiary means that incriminate the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal.”

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The presumption of innocence applies without exceptions in the sanctioning legal framework and must

be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence presented and by a contradictory procedure in which the parties can defend their own positions. In accordance with this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

VI

Based on the above, after analyzing the arguments and evidence presented, it can be concluded that it has not been proven that the devices installed "process data of third parties," nor that they disproportionately affect private and/or public spaces, all of which justify the filing of the current procedure.

Finally, the parties are reminded of the significance of the rights at stake, and they should avoid instrumentalizing this body in matters related to "neighborhood disputes," with attitudes conforming to the minimum rules of good neighborly coexistence being recommended.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the gradation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the FILING of the present procedure as no administrative infringement has been proven in the matter at hand.

SECOND: TO NOTIFY this resolution to Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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